

20STCV44732 20STCV44732

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-18
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Case Number: 20STCV44732 Hearing Date: September 18, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

XING WU,

Plaintiff,

vs.

ROSEANN FRAZEE, et al.,

Defendants.

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CASE NO.: 20STCV44732

[TENTATIVE] ORDER DENYING PLAINTIFF'S REQUEST
FOR ENTRY OF DEFAULT JUDGMENT

Dept. 506

8:30 a.m.

September 18, 2026

On November 20, 2020, Plaintiff Xing Wu filed this action. Plaintiff filed the operative Third Amended Complaint on August 13, 2023.

Default was entered against Defendant Karen B. Miller on February 26, 2025. The other defendants were dismissed with prejudice on August 10, 2026.

On August 11, 2026, Plaintiff filed a request for entry of default judgment against Defendant Karen B. Miller.

Plaintiff seeks a judgment of \$1,431,834.92, consisting of \$1,430,730.94 in damages and \$1,103.98 in costs. The Third Amended Complaint requests damages "according to proof." No specific amount of damages is identified with respect to Defendant Miller. The Court cannot award more in a default judgment than the amount demanded in the complaint. (Code Civ. Proc., § 580, subd. (a).)

Accordingly, the request for entry of default judgment

is DENIED WITHOUT PREJUDICE.

By the Court's docket calculations, this case is now 2,128 days old. That is over five and three-quarters years since Plaintiff initiated this action.

At the OSC, Plaintiff should be prepared to explain why the Court should not dismiss the action pursuant to the five-year rule. (Code Civ. Proc., § 583.310.)

Clerk
to give notice.

Dated this 18th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court